



CHAPTER 30.

An Act to amend the law relating to Trunk Roads ; and for purposes connected therewith. [6th March 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, the roads specified in the First Schedule to this Act shall become trunk roads as from the first day of April, nineteen hundred and forty-six.

Additional trunk roads and reorganisation of trunk road system.

(2) The Minister shall keep under review the national system of routes for through traffic in Great Britain, and if he is satisfied, after taking into consideration the requirements of local and national planning, including the requirements of agriculture, that it is expedient for the purpose of extending, improving or reorganising that system that any existing road, or any road proposed to be constructed by him, should become a trunk road, or that any trunk road should cease to be a trunk road, he may by order direct that that road shall become, or as the case may be shall cease to be, a trunk road as from such date as may be specified in that behalf in the order.

(3) Section two of the principal Act (which excludes from the roads that are trunk roads under that Act roads in London and roads in county boroughs) shall cease to have effect, except as respects roads in the City of London :

Provided that, without prejudice to the provisions of subsection (1) of this section or to any order made under subsection (2) of this section, no road which was not a trunk road immediately before the commencement of this Act shall become a trunk road by virtue only of this subsection.

(4) Subject to the provisions of this Act, the principal Act shall apply in relation to roads which become or cease to be

trunk roads by virtue of this section, or of any order made thereunder, as it applies in relation to roads becoming or ceasing to be trunk roads under that Act.

General
provisions as
to orders
under
section 1.

2.—(1) The provisions of the Second Schedule to this Act shall be complied with in connection with the making of an order under subsection (2) of section one of this Act; and if objection to the order is duly made in accordance with the provisions of the said Schedule by a council who are responsible for the maintenance of any road to which the order relates, or who will become so responsible by virtue of the order, and is not withdrawn, the order shall be provisional only and shall be subject to special parliamentary procedure.

(2) Where any such order directs that an existing road shall become a trunk road, or that a road shall cease to be a trunk road, the date to be specified in that behalf in the order shall be the first day of April next after the date on which the order takes effect, or, where the order directs both that a road shall cease to be a trunk road and that a road proposed to be constructed by the Minister on a new route in substitution therefor shall become a trunk road, the first day of April next after the date on which notice is given by the Minister to the council who will become responsible for the maintenance of the first-mentioned road that the new route is opened for the purposes of through traffic.

(3) Where any such order directs that a road shall cease to be a trunk road, then, as from the date specified in that behalf in the order, the following authority, that is to say—

(a) where the road is situated within a rural district, a county borough or a metropolitan borough, the council of the county comprising that district or the council of the county borough or metropolitan borough, as the case may be;

(b) where the road is situated within any other borough or within an urban district, the council of the county comprising that borough or district, or the council of the borough or district, according as the road is or is not designated by the order as a classified road,

shall become the highway authority for the road:

Provided that in the case of a road in the county of London—

(a) where the road includes a bridge or tunnel which, immediately before the road became a trunk road, was vested in the London County Council, that council shall become the highway authority for the bridge or tunnel and so much of the road as is carried thereby, but without prejudice to any liability of the council of any metropolitan borough to maintain and repair the carriageways and footways over any such bridge; and

(b) if the Minister, after consultation with the London County Council and the council of the metropolitan borough in which the road is situated, considers that any other bridge or tunnel forming part of the road ought to be vested in the London County Council, the order may direct that that council shall become the highway authority for that bridge or tunnel and so much of the road as is carried thereby.

(4) A road for which the council of a county or of a county borough become the highway authority by virtue of the last foregoing subsection shall be deemed to be a county road, and in relation to a road for which the council of a county so become the highway authority section thirty-two of the Local Government Act, 1929 (which entitles the councils of certain boroughs and urban districts to claim the functions of maintenance and repair of county roads), shall have effect as if the road had become a county road on the date on which the order takes effect, but any functions of maintenance and repair claimed under the said section shall not be exercisable until the date on which the road becomes a county road. 19 & 20 Geo. 5. c. 17.

(5) If any order made under section one of this Act, being an order which directs that a road proposed to be constructed by the Minister shall become a trunk road, is revoked or varied by a subsequent order made at any time before the date on which that road is opened for the purposes of through traffic, the revoking or varying order shall not be deemed for the purposes of this section to be an order directing that a road shall cease to be a trunk road.

3.—(1) Where the Minister proposes to make an order under section one of this Act directing that any road shall become a trunk road and the Minister considers it expedient that that road, when it becomes a trunk road, should be used only for traffic passing in one direction, and that any other road, being a trunk road or a road which is to become a trunk road by virtue of the order, should be used only for traffic passing in the other direction, then, without prejudice to the power of the Minister to make orders under section forty-six of the Road Traffic Act, 1930, the order under the said section one may make provision for restricting the use of those roads accordingly as from such date as may be specified in that behalf in the order, and thereupon the said provision shall have effect as if it were contained in an order made under subsection (2) of the said section forty-six, and the provisions of that section shall apply in relation thereto as they apply in relation to an order made under that subsection. Additional powers relating to one-way roads, cycle tracks etc. 20 & 21 Geo. 5. c. 43.

(2) Without prejudice to the powers of the Minister to improve trunk roads by the construction of cycle tracks and foot-paths for use in connection therewith, or to provide such tracks or paths as part of any trunk road which he is authorised to construct,

the power to make orders under section one of this Act directing that roads proposed to be constructed by the Minister shall become trunk roads may be exercised in relation to any such track or path proposed to be constructed by the Minister upon land separated by intervening land from the road in connection with which it is to be used; and any reference in the principal Act or this Act to a trunk road shall be construed as including a reference to a cycle track or footpath to which any such order relates:

Provided that in the application of the Act of 1935 to any such track or path as aforesaid, section one of that Act (which relates to the adoption of standard widths) shall not apply, and subsection (1) of section two of that Act (which relates to the restriction of development along the frontages of roads) shall have effect as if for the reference in paragraph (b) thereof to land within two hundred and twenty feet from the middle of the road there were substituted a reference to land forming the site of the track or path.

(3) For the avoidance of doubt it is hereby declared that in calculating for the purposes of the Act of 1935 the middle of any trunk road in connection with which a cycle track or footpath is constructed, so much of the track or path as is separated from the road by any land not forming part of that road is to be disregarded.

Additional
powers relating
to side roads
connected
with trunk
roads.

4.—(1) Without prejudice to the powers of the Minister as highway authority to construct and improve roads, the Minister may be authorised by means of an order made by him in accordance with the provisions of the Second Schedule to this Act—

- (a) to carry out, in relation to any road specified in the order, such improvements as may be so specified, being improvements which the Minister considers it expedient to carry out for the purpose of effecting a safer or more convenient junction between a trunk road and any other road;
- (b) to construct any road on a route so specified, being a road which the Minister considers it expedient to construct for the purposes aforesaid, or for the purpose of effecting a safe and convenient junction between a new road constructed by him as a trunk road and any road connected with a road which ceases to be a trunk road;
- (c) subject as hereinafter provided, to stop up either entirely or to such extent as may be so specified, any junction between a trunk road and any other road, being a junction which the Minister considers it necessary or expedient so to stop up in the interest of the safety of persons or vehicles using those roads respectively:

Provided that the Minister shall not make an order authorising him to stop up any such junction unless he is satisfied that a sufficient alternative connection with the trunk road is available within four hundred and forty yards of the existing junction, or unless the order provides for the carrying out of such works as the Minister considers necessary for the provision of such an alternative connection before the existing junction is stopped up.

(2) Subject to the provisions of this section, the execution of any works by the Minister in accordance with an order made under this section shall be deemed for the purposes of the principal Act to be an improvement of the trunk road in connection with which they are executed, and without prejudice to the foregoing provision any such order may direct that, as from such date as may be specified in that behalf in the order, section four of the principal Act (which modifies the Act of 1935 in its application to trunk roads) shall apply in relation to any road proposed to be constructed by the Minister in accordance with the order, or in relation to so much of any road as the Minister proposes to improve thereunder, as if it had become a trunk road on that date.

(3) An order under this section which provides for the improvement by the Minister of any road may direct that any land acquired by the Minister for the purpose shall, as from such date as may be determined by or under the order, vest in the highway authority for that road; and an order under this section which provides for the construction by the Minister of a road may direct that, as from such date as may be so determined, the following authority, that is to say—

- (a) where the road is situated within a rural district, a county borough or a metropolitan borough, the council of the county comprising that district or the council of the county borough or metropolitan borough, as the case may be;
- (b) where the road is situated within any other borough or within an urban district, the council of the county comprising that borough or district, or the council of the borough or district, according as the road is or is not designated by the order as a classified road,

shall become the highway authority for the road.

(4) The provisions of section seven of the principal Act (which relates to the transfer of property and liabilities), and the transitional provisions contained in the Fifth Schedule to that Act, shall apply in relation to a road for which any council become the highway authority by virtue of an order under this section as if it had previously been a trunk road, and subsection (4) of section two of this Act shall apply in relation to a road for which the

council of a county or county borough become the highway authority by virtue of such an order as it applies in the case of orders made under section one of this Act.

Exercise by
Minister of
certain
powers to
purchase land
in connection
with trunk
roads.

5.—(1) In relation to a trunk road, the power of a highway authority under section thirteen of the Act of 1935 to acquire land for purposes other than the construction or improvement of the road (that is to say the power to acquire land within two hundred and twenty yards from the middle of the road for the purpose of preventing the erection of buildings detrimental to the view from the road, and the power to acquire land by agreement for the purpose of preserving the amenities of the locality in which the road is situated) shall be exercisable by the Minister as well as by the authority by whom functions are exercisable under section one and section two of the said Act.

(2) Section five of the principal Act (which enables the Minister to delegate to certain councils functions relating to trunk roads) and subsection (1) of section six of that Act (which enables the Minister to make agreements with such councils for the carrying out of works of improvement of or other dealings with trunk roads) shall apply in relation to any land purchased under this section, notwithstanding that the land does not form part of a trunk road, as they apply in relation to a trunk road.

Bridges and
tunnels over
and under
navigable
waters.

6.—(1) Without prejudice to any power of the Minister to construct bridges or tunnels for the purposes of trunk roads, provision may be made by an order under section one of this Act for the construction as part of a trunk road of a bridge over any navigable waters specified in the order, or of a tunnel under any such waters :

Provided that before making an order providing for the construction of any such bridge or tunnel, the Minister shall take into consideration the reasonable requirements of navigation over the waters affected by the order.

(2) An order which provides for the construction of such a bridge shall include such plans and specifications as may be necessary to indicate the position and dimensions of the proposed bridge, including the spans, headways and waterways thereof, and, in the case of a swing bridge, shall contain such provisions as the Minister considers expedient for regulating the operation of the bridge ; and an order which provides for the construction of such a tunnel shall include such plans and specifications as may be necessary to indicate the position and dimensions of the proposed tunnel, including the depth thereof below the bed of the sea, river or other navigable waters, as the case may be.

(3) In relation to any such order as aforesaid, paragraphs 2 and 4 of the Second Schedule to this Act shall have effect as if any reference therein to the councils specified in the said paragraph 2 included a reference to every navigation authority or catchment board concerned with or having jurisdiction over the

waters affected or the area comprising those waters; and if objection to the order is duly made in accordance with the provisions of the said Schedule by any such authority or board as aforesaid on the ground that the bridge or tunnel is likely to obstruct or impede the performance of their functions under any enactment, or to interfere with the reasonable requirements of navigation over the waters affected by the order, and the objection is not withdrawn, the order shall be subject to special parliamentary procedure.

(4) In this section the expression "enactment" includes a local or private Act and an order having the force of an Act, and the expression "navigation authority" means any person or body of persons, whether incorporated or not, having powers under any enactment to work, maintain, conserve, improve or control any canal or other inland navigation, navigable river, estuary, harbour or dock.

7.—(1) On the first day of April, nineteen hundred and forty-six, every bridge to which this section applies by which any road which is or becomes a trunk road on that date is carried shall be transferred to the Minister; and where an order is made under section one of this Act directing that any road specified in the order shall become a trunk road, every such bridge as aforesaid by which that road is carried shall be transferred to the Minister on the date on which the road becomes a trunk road:

Transfer to
Minister of
private
bridges
carrying
trunk roads.

Provided that if on the date aforesaid any part of the road carried by such a bridge is not a trunk road, the bridge shall not be transferred to the Minister by virtue of this section unless and until that part becomes a trunk road.

(2) Where a bridge is transferred to the Minister under this section then, subject as hereinafter provided, the bridge, including any building or structure comprised therein and the road carried thereby, shall by virtue of this section vest in the Minister for all the estate or interest of the owners therein, and thereupon—

- (a) the bridge shall for all purposes become part of the trunk road; and
- (b) notwithstanding anything in subsection (7) of section three of the principal Act, any liability of the owners for the improvement, maintenance or repair of the bridge or the road shall be extinguished; and
- (c) any statutory provision in force, in relation to the bridge, for the protection or benefit of any statutory undertakers shall have effect, subject to any necessary modifications, as if for any reference therein to the owners of the bridge there were substituted a reference to the Minister:

Provided that the Minister and the owners may, by agreement in writing made either before or after the date on which the

bridge is so transferred, agree that the provisions of this subsection with respect to the transfer of property shall not apply, or as the case may be shall be deemed not to have applied, to such property comprised in the bridge as may be specified in the agreement.

(3) In respect of any bridge which is transferred to the Minister under this section, the owners shall pay to the Minister such sum as may be agreed between them and the Minister or, in default of such agreement, such sum as may be determined by arbitration, to represent the value to the owners of the extinguishment of their liability under the last foregoing subsection, and the Minister shall pay the owners such sum as may be so agreed or determined to represent the value to the owners of the bridge as an asset productive of revenue.

(4) Any sum payable by the owners of a bridge to the Minister under the last foregoing subsection shall, in so far as it exceeds any sum payable by the Minister to the owners thereunder, be paid, at the option of the owners—

- (a) as a lump sum ; or
- (b) by annual payments of such amount, and continuing for such number of years, as may be agreed between the owners and the Minister or, in default of agreement, determined by arbitration ; or
- (c) by perpetual annual payments of such amount as may be so agreed or determined.

(5) Where any bridge transferred to the Minister under this section carries the road over any railway, canal, road or other works used for the purposes of any undertaking carried on by the owners, then, so long as those works are so used—

- (a) the Minister shall before entering on any land of the owners for the purpose of executing any works for the maintenance, improvement or alteration of the bridge, give notice in writing to the owners specifying the general nature of the works proposed to be executed ; and
- (b) except with the consent of the owners, the Minister shall not reduce the headway or spans of the bridge ; and
- (c) if the headway of the bridge is reduced in consequence of subsidence due to mining operations, or of any works carried out by the owners for the purpose of raising the railway, canal, road or other works to a level not higher than their level before the subsidence occurred, the Minister shall, if so required by the owners, raise the bridge so far as may be necessary to give the same headway as before the subsidence occurred :

Provided that any consent required for the execution of any works by the Minister under this subsection shall not be unreasonably withheld, and if any question arises whether or not it is unreasonably withheld that question shall be determined by arbitration.

(6) The purposes for which a compulsory purchase order may be made under section fourteen of the Act of 1935, as applied in relation to trunk roads by section four of the principal Act, shall include the execution of any works (other than the reconstruction of a bridge on a different site) for the maintenance, improvement or alteration of any bridge transferred to the Minister under this section, and in relation to any such order subsections (2) and (3) of the said section fourteen shall have effect as if any reference therein to the construction of a bridge or the approaches thereof included a reference to the reconstruction or alteration of the bridge.

(7) Any dispute between the Minister and any authority or person as to the property or liabilities transferred under this section, or as to the liability of the Minister to carry out any works under this section, shall be determined by arbitration.

(8) For the purposes of subsection (3) of this section, a bridge shall not be treated as an asset productive of revenue unless at the time when the bridge is transferred under this section—

- (a) a contract is in force under which payments have been made or will accrue to the owners in respect of the use of the bridge ; or
- (b) the bridge includes any building constructed or adapted for use by the owners for the purposes of their undertaking or for letting to any other person.

(9) The bridges to which this section applies are bridges, including viaducts, which carry the road over any railway or road, over any canal, river, water-course, marsh or other place where water flows or is collected, or over any ravine or other depression, not being—

- (a) swing bridges ;
- (b) bridges which carry a railway as well as the road; or
- (c) bridges to which a right to levy tolls is attached, or for the maintenance and repair of which any highway authority are responsible as such ;

and for the purposes of this section the expression " bridge " includes the abutments and walls thereof and so much of the approaches thereto as carries the road, and the expression " owners," in relation to a bridge, means the persons who, immediately before the transfer of the bridge to the Minister,

were responsible for the maintenance and repair thereof, and includes any person who, in pursuance of any agreement with the persons so responsible, were then discharging that responsibility on their behalf.

(10) Nothing in this section shall be construed as affecting the provisions of section seven of the principal Act with respect to the transfer to the Minister, as part of a trunk road, of any bridge vested in the former highway authority.

(11) Where a road carried by a bridge transferred to the Minister under this section ceases to be a trunk road, the Minister may contribute towards the expenses incurred in the maintenance and repair of the bridge by the council who become the highway authority for the road.

Miscellaneous
provisions
relating to
trunk roads.

8.—(1) The power of the Minister to delegate functions under subsection (1) of section five of the principal Act shall include power, with the consent of the council of the county, county borough or metropolitan borough in which the road is situated, to delegate to the council of a borough or urban district functions with respect to a trunk road outside that borough or district.

(2) Nothing in section five or section six of the principal Act shall be construed as limiting the power of the Minister to enter into and carry into effect agreements with any authority or person for any purpose connected with the construction, improvement, maintenance or other dealing with a trunk road or otherwise connected with his functions under the principal Act or this Act :

Provided that no such agreement shall provide for the delegation of powers or duties of the Minister except in accordance with the provisions of the said section five.

(3) For the purpose of the drainage of a trunk road, the Minister may exercise any powers exercisable by a local authority under the Public Health Act, 1936, or, in the case of a road in the County of London, under the Public Health (London) Act, 1936, for the purposes of the drainage of highways within the area of that authority.

(4) The provisions of the Land Charges Act, 1925, with respect to the registration of local land charges shall apply to any prohibition or restriction on the use of land or buildings imposed by the Minister in relation to a trunk road—

(a) by a notice served by him under section four of the Roads Improvement Act, 1925 ; or

(b) by the prescription of a building line under section five of the last mentioned Act or of an improvement line under section thirty-three of the Public Health Act, 1925,

as if the notice or prescription were a local land charge, and any such prohibition or restriction shall be registered accordingly by the proper officer of the local authority within whose area the land to which it relates is comprised.

(5) For the purposes of subsection (1) of section three of the Act of 1935, the restrictions specified in section two of that Act shall, in a case where those restrictions apply to a road by virtue only of subsection (2) of section four of the principal Act, or of that subsection as applied by section four of this Act, be deemed to have been first published—

- (a) where the road becomes a trunk road by virtue of an order made under section one of this Act, or where the said subsection (2) applies thereto by virtue of an order made under section four of this Act, on the date on which notice of the draft order is published in accordance with the provisions of the Second Schedule to this Act ;
- (b) where the road becomes a trunk road under this Act otherwise than by virtue of such an order, on the date on which it becomes a trunk road ; and
- (c) where the road became a trunk road by virtue of an order made under any of the provisions of the principal Act, on the date on which the road became a trunk road.

(6) Subsection (7) of section three of the principal Act (which continues the liability of any authority or person to maintain and repair any road which immediately before it became a trunk road was not repairable by a local authority) shall cease to have effect in relation to the Menai Bridge and the road carried thereby.

9.—(1) Subsections (5) and (6) of section one of the principal Act (which made temporary provision for enabling the Minister by order to modify the provisions of the First Schedule to that Act for the purpose of substituting for any road specified therein a road in course of construction at the date of the passing of that Act, or for the purpose of correcting or clarifying the description of any road specified in that Schedule) shall apply in relation to roads which become trunk roads by virtue of this Act subject to the following modifications, that is to say :—

Temporary
and
transitional
provisions.

- (a) for any reference to the First Schedule to that Act there shall be substituted a reference to the First Schedule to this Act ;
- (b) for the reference to the passing of the principal Act there shall be substituted a reference to the passing of this Act, and for the words " the first day of April, nineteen hundred and thirty-seven " and the words " the thirty-first day of March, nineteen hundred and thirty-nine " there shall be substituted respectively the words " the first day of April, nineteen hundred and forty-six " and the words " the thirty-first day of March, nineteen hundred and forty-eight " ; and

- (c) the reference to a county shall be construed as including a reference to a county borough and a metropolitan borough.

(2) Subsection (4) of section five of the principal Act (which conferred on the Minister special powers exercisable for the purpose of securing continuity of administration during the period of two years following the thirty-first day of March, nineteen hundred and thirty-seven) shall have effect, in relation to any road specified in the First Schedule to this Act, as if for the references therein to the thirty-first day of March, nineteen hundred and thirty-seven and the thirty-first day of March, nineteen hundred and thirty-nine there were substituted respectively references to the thirty-first day of March, nineteen hundred and forty-six and to the thirty-first day of March, nineteen hundred and forty-eight.

(3) The provisions set out in the Fifth Schedule to the principal Act (which relate to transitional matters) shall have effect for the purposes of this Act as if in paragraph 3 of the said Schedule for the reference to the first day of April, nineteen hundred and thirty-seven, there were substituted a reference to the first day of April, nineteen hundred and forty-six, and for the reference to the sixth day of July, nineteen hundred and thirty-six there were substituted a reference to the twenty-sixth day of October, nineteen hundred and forty-five.

Expenses.

10.—(1) All expenses incurred by the Minister with the approval of the Treasury under this Act in the construction, maintenance, repair or improvement of roads, and such of the expenses so incurred in other dealing with roads as may be determined by the Minister with the consent of the Treasury, shall be defrayed out of the Road Fund; and all other expenses of the Minister under this Act shall, to such amount as may be approved by the Treasury, be defrayed out of moneys provided by Parliament.

(2) For the purposes of the last foregoing subsection any expenses incurred by the Minister in the acquisition of land under subsection (1) of section five of this Act, or in managing, improving, or otherwise dealing with such land, shall be deemed to be incurred in dealing with roads.

(3) Any sums received by the Minister under section seven of this Act shall be paid into the Exchequer.

Interpretation
and
construction.
25 & 26 Geo. 5.
c. 47.

11.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“Act of 1935” means the Restriction of Ribbon Development Act, 1935:

“County of London” means the Administrative County of London as defined in subsection (1) of section one of the London Government Act, 1939, exclusive of the City of London:

2 & 3 Geo. 6.
c. 40.

"Minister" means the Minister of War Transport :

"Principal Act" means the Trunk Roads Act, 1936 :

1 Edw. 8. &
1 Geo. 6. c. 5.

"Swing bridge" includes any opening bridge operated by mechanical means :

and, except where the context otherwise requires, other expressions have the same meaning as in the principal Act.

(2) For the avoidance of doubt it is hereby declared that for the purposes of the principal Act and this Act any road described in the First Schedule to that Act or in the First Schedule to this Act includes so much of any other road, not being itself a trunk road, as crosses that road on the level.

(3) Any reference in this Act to the principal Act or to any other enactment shall, unless the context otherwise requires, be construed as a reference to that Act or enactment as amended by any subsequent enactment, including this Act.

(4) Any reference in the principal Act to that Act or to any provision thereof shall, unless the context otherwise requires, be construed as including a reference to this Act, or to that provision as amended by this Act, as the case may be.

12.—(1) The provisions of the principal Act specified in the Amendments Third Schedule to this Act shall have effect subject to the and repeal. amendments (being minor and consequential amendments) set out in relation thereto in the second column of that Schedule.

(2) Subsection (3) of section three of the Town and Country Planning Act, 1944 (which provides for special publication of notice of an order made under that section authorising the compulsory purchase of land except where, amongst other cases, the land is required for a project which has been the subject of an inquiry for the purposes of subsection (3) of section one of the principal Act) shall have effect as if after the words "the Trunk Roads Act, 1936," there were inserted the words "or for the purposes of section one or section four of the Trunk Roads Act, 1946." c. 47.

(3) Subsections (3) and (4) of section one of the principal Act are hereby repealed :

Provided that without prejudice to the provisions of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) any order made before the commencement of this Act under subsection (3) of the said section one shall continue in force, and subsection (4) of that section shall apply in relation thereto, as if those subsections had not been repealed. 52 & 53 Vict c. 63.

13. Subsection (5) of section fourteen of the Act of 1935 (which precludes the compulsory acquisition by means of an order under that section of rights in land for the purposes of the construction Supplement-ary provisions as to Manchester Ship Canal.

of a bridge under or over the Manchester Ship Canal) shall not apply in relation to the acquisition of such rights under that section if the acquisition is required—

- (a) for the purpose of the construction of a bridge for which provision is made by any such order as is mentioned in section six of this Act ; or
- (b) for the purposes of the execution of any works (other than the reconstruction of a bridge on a different site) for the maintenance, improvement or alteration of a bridge transferred to the Minister under section seven of this Act.

Application
to Scotland.

14.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland.

8 & 9 Geo. 6.
c. 33.

(2) For any reference to the Town and Country Planning Act, 1944, there shall be substituted a reference to the Town and Country Planning (Scotland) Act, 1945.

(3) For any reference to a county borough there shall be substituted a reference to a large burgh ; for any reference to an easement there shall be substituted a reference to a servitude ; and for references to the thirty-first day of March and to the first day of April there shall be respectively substituted references to the fifteenth and to the sixteenth day of May, or in any case concerning a local authority whose financial year ends on a day other than the fifteenth day of May, references to that other day and to the next day thereafter.

(4) Section two and section four shall have effect as if—

- (i) in subsection (3) of section two and subsection (3) of section four for paragraphs (a) and (b) there were substituted the following paragraphs :—

“(a) where the road is situated in a large burgh or in the landward area of a county or in a small burgh the council whereof is not charged with the maintenance and management of any of the roads therein, the council of the large burgh or county in which the road or such small burgh is situated ;

(b) where the road is situated in a small burgh the council whereof is charged with the maintenance and management of the roads therein other than classified roads, the council of the county in which the burgh is situated or the council of the burgh according as the road is or is not designated by the order as a classified road ;”

and

- (ii) subsection (4) of section two, and all the words after “ trunk road ” in subsection (4) of section four, were omitted.

(5) Section eight shall have effect as if (i) subsection (1) were omitted; and (ii) for the reference in subsection (3) to the Public Health Act, 1936, there were substituted a reference to sections eighty-four and eighty-five of the Act First and Second William the Fourth Chapter forty-three as incorporated with and extended and applied by the Roads and Bridges (Scotland) Act, 1878. 41 & 42 Vict.
c. 51.

(6) The Second Schedule shall have effect as if in paragraph 2 for the words from "county borough" to the end of the paragraph there were substituted the words "(inclusive of any small burgh therein) or large burgh in which any road to which the order relates is situated, and, in the case of a road situated in a small burgh with the maintenance and management of which the town council of that burgh is charged, on the town council."

(7) Where an order is, in pursuance of this Act, subject to special parliamentary procedure—

(i) if notice has been published in accordance with paragraph 1 of the Second Schedule to this Act, the provisions of subsection (1) of section two as read with section ten of the Statutory Orders (Special Procedure) Act, 1945, with regard to advertisement of notice shall be deemed to have been complied with; and 9 & 10 Geo. 6.
c. 18.

(ii) paragraphs 4 and 5 of the Second Schedule to this Act shall not apply.

(8) Any question or dispute which is required by this Act or by the principal Act to be determined by arbitration shall be determined by a single arbiter appointed, in default of agreement, by the Court of Session or the sheriff on the application of either party to the question or dispute. At any stage of the proceedings in any such arbitration the arbiter may, and shall, if so directed by the Court of Session, state a case for the opinion of the Court of Session on any question of law arising in the arbitration.

(9) The expressions "large burgh" and "small burgh" have the meanings respectively assigned to them by the Local Government (Scotland) Act, 1929. 19 & 20
Geo. 5. c. 25.

15. For the purpose of the application of the principal Act and this Act to roads in the County of London with respect to which orders may be made under any of the foregoing provisions of this Act, the provisions of the principal Act specified in the Fourth Schedule to this Act shall have effect subject to the modifications set out in relation thereto in the second column of that Schedule, and any reference in this Act to the principal Act Modification
of principal
Act in its
application
to London.

or to any provision of that Act or to any enactment applied by that Act, shall be construed, in relation to any such road, as a reference to that Act or to that provision or to that enactment, as the case may be, as modified by virtue of this section.

Saving for
Rochester
Bridge, Bide-
ford Bridge and
Barnstaple
Bridge.

16. The provisions of this Act with respect to the transfer of private bridges shall not apply to Rochester Bridge, Bideford Bridge and Barnstaple Bridge.

Short title,
citation and
extent.

17.—(1) This Act may be cited as the Trunk Roads Act, 1946, and the principal Act and this Act may be cited together as the Trunk Roads Acts, 1936 and 1946.

(2) This Act shall not extend to Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

ADDITIONAL ROADS WHICH BECOME TRUNK ROADS.

Section 1.

PART I.

ROADS IN COUNTIES.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
LONDON— CAMBRIDGE— KING'S LYNN.	London – Tottenham (Junction with A 1001)	A 10
	Tottenham— Junction with A 10 – Eastern junction with A 109.	A 1001
	Eastern junction with A 1001 – Western junction with A 1001.	A 109
	Western junction with A 109 – Junction with A 108.	A 1001
	Tottenham (Junction with A 1001) – South of Broxbourne.	A 108
	South of Broxbourne – Hoddesdon – Ware – Buntingford – Royston (High Street, Melbourne Street) – Cambridge – Ely – Littleport – Downham Market – South-east of King's Lynn (Junction with A 47).	A 10
EAST OF LONDON— SOUTHEND.	Gallow's Corner (Junction with A 12) – Southend.	A 127
LONDON—TILBURY	West Ham – East Ham – North of Grays Thurrock (Junction with A 1089).	A 13
	North of Grays Thurrock (Junction with A 13) – North of Tilbury (Junction with A 128).	A 1089
	North of Tilbury (Junction with A 1089) – Tilbury (Junction with A 126).	A 128
	Tilbury (Junction with A 128) – Tilbury Riverside Station.	A 126
LONDON— CANTERBURY— DOVER.	London – Rochester (High Street, Eastgate, Star Hill and New Road) – Chatham (New Road Avenue, New Road and Chatham Hill) – Gillingham – Sittingbourne – Canterbury – Dover (Junction with A 259).	A 2
LONDON— AYLESBURY— WARWICK— BIRMINGHAM.	Northway Circus (Apex Corner) – Brockley Hill (Junction with A 5).	A 500
	Watford By-pass ($\frac{1}{4}$ mile South-east of river Colne) – Hunton Bridge.	A 500
	Hunton Bridge – Berkhamstead – Tring – Aylesbury.	A 41
	Aylesbury— Tring Road – High Street – Kingsbury Square – Buckingham Street (part) – Bicester Road.	A 41
	Aylesbury – Bicester – Banbury – Warwick – Birmingham.	A 41

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
LONDON NORTH CIRCULAR ROAD.	Chiswick - Ealing - Neasden - Hendon - Finchley (Western junction with A 555). Finchley (Eastern junction with A 555) - Southgate - Edmonton - Woodford - Gants Hill (junction with A 12).	A 406 A 406
FOLKESTONE-BRIGHTON-SOUTHAMPTON-DORCHESTER-HONITON.	Folkestone (Junction with A 20) - Hythe (Prospect Road, Theatre Street, Rampart Road) - New Romney - Rye (Junction with Fishmarket Road). Rye— Fishmarket Road - South Undercliff - The Strand. Rye (Junction with The Strand) - Hastings - Bexhill - Pevensey. Pevensey - Polegate (Northern junction with A 22). Polegate (Northern junction with A 274) - Polegate (Southern junction with A 274). Polegate (Southern junction with A 22) - Lewes. Lewes-Brighton Brighton - Hove - Worthing (South-eastern junction with A 24). Worthing (South-eastern junction with A 27) - Worthing (North-western junction with A 27). Worthing (North-western junction with A 24) - Arundel - Chichester - Emsworth - Portsmouth - Southampton. Southampton - Millbrook Millbrook-Totton (Junction with A 36) ... Totton (Junction with A 35) - Totton (Junction with A 336). Totton (Junction with A 36) - Cadnam ... Cadnam - Ringwood - Wimborne Minster - Bere Regis. Bere Regis - Dorchester - Bridport - West of Charmouth. West of Charmouth - Axminster - Honiton (Eastern junction with A 30).	A 259 Unclassified A 259 A 274 A 22 A 274 A 26 A 27 A 24 A 27 A 3067 A 35 A 36 A 336 A 31 A 35 A 373
BASINGSTOKE-NEWBURY.	Basingstoke— Junction with A 30 at Black Dam - Eastrop Bridge - Eastern junction with A 33 (Reading Road). Eastern junction with A 339 - Western junction with A 339. Basingstoke (Western junction with A 33) - Kingsclere - Newbury.	A 339 A 33 A 339
WEST OF SOUTHAMPTON-SALISBURY-BATH.	Totton (Junction with A 336) - Ower (Southern junction with A 31). Ower (Southern junction with A 36) - Wigley (Northern junction with A 36). Wigley (Northern junction with A 31) - Salisbury (Eastern junction with B 3389).	A 36 A 31 A 36

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
WEST OF SOUTHAMPTON—SALISBURY—BATH—cont.	Salisbury— Eastern junction with A 36 – Western junction with A 36. Western junction with B 3389 – Western junction with A 30. Wilton – Warminster – Bath	B 3389 A 36 A 36
EXETER—LAUNCESTON—BODMIN.	Exeter – Okehampton – Launceston (Tavistock Road, Junction with A 388). Launceston— Tavistock Road (Junction with A 30) – Pages Cross. Pages Cross – Pennygillam Cross Launceston (Pennygillam Cross) – Bodmin (Junction with A 38).	A 30 A 388 B 3254 A 30
TAUNTON—BARNSTABLE—BUDE—FRADDON.	Taunton – Langford Bridge (Western junction with A 361). Langford Bridge (Western junction with A 358) – Wiveliscombe – South Molton – Barnstaple. Barnstaple – Instow (Northern junction with B 3233). Instow (Northern junction with A 39) – Instow (Southern junction with A 39). Instow (Southern junction with B 3233) – Bideford – Stratton By-pass. Stratton By-pass Stratton By-pass – Camelford – Wadebridge – St. Columb Major – Fraddon (Northern junction with A 30).	A 358 A 361 A 39 B 3233 A 39 Unclassified A 39
WEST OF MAIDENHEAD—OXFORD.	Maidenhead Thicket – Henley-on-Thames (Southern junction with A 4155). Henley-on-Thames (Southern junction with A 423) – Henley-on-Thames (Northern junction with A 423). Henley-on-Thames (Northern junction with A 4155) – Benson – Oxford.	A 423 A 4155 A 423
HUNGERFORD—GLOUCESTER—ROSS—HEREFORD.	Hungerford – Aldbourne (Junction with unclassified road to Baydon). Aldbourne – Lottage Lottage – Ermine Street Ermine Street— Junction with unclassified road from Lottage – Callas Hill – Stratton St. Margaret (Junction with A 420). Stratton St. Margaret— Junction with A 420 – Junction with A 361 South-eastern junction with B 4021 – North-western junction with B 4021. Stratton St. Margaret (North-western junction with A 361) – North-west of Stratton St. Margaret (Junction with A 419). North-west of Stratton St. Margaret (Junction with B 4021) – Cricklade – Cirencester. Cirencester – Birdlip – Gloucester... ..	A 419 Unclassified Unclassified Unclassified B 4021 A 361 B 4021 A 419 A 417

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
HUNGERFORD— GLOUCESTER— ROSS—HEREFORD —cont.	Highnam Court (Junction with A 48) — Huntley — Ross — Wilton (Junction with A 49).	A 40
	Wilton (Junction with A 40) — Hereford (Southern junction with A 465).	A 49
BATH— CHELTENHAM— EVESHAM— COVENTRY— LEICESTER— LINCOLN.	Bath — Stroud — Cheltenham (Southern junction with B 4076).	A 46
	Cheltenham—	
	Southern junction with A 46 — Junction with College Road.	B 4076
	College Road — Hewlett Street — All Saints Road — Pittville Circus — Wellington Road (Junction with A 435).	Unclassified
	Cheltenham (Junction with Wellington Road) — Evesham — Norton (Junction with A 439).	A 435
	Norton (Junction with A 435) — Stratford-on-Avon (Junction with A 422).	A 439
	Stratford-on-Avon (Junction with A 439) — Stratford-on-Avon (Junction with A 34).	A 422
	Stratford-on-Avon (Northern junction with A 34) — Warwick — Coventry — Smockington (North-western junction with A 5).	A 46
	Smockington (North-western junction with A 46) — Smockington (South-eastern junction with A 46).	A 5
	Smockington (South-eastern junction with A 5) — Sharnford — Leicester — Six Hills — Newark-upon-Trent (South-western junction with A 1).	A 46
	Newark-upon-Trent (North-eastern junction with A 1) — Lincoln.	A 46
IPSWICH— NEWMARKET— CAMBRIDGE— ST. NEOTS— BEDFORD— NORTHAMPTON— WEEDON.	Ipswich — Stowmarket — Bury St. Edmunds (Southern junction with A 1022).	A 45
	Bury St. Edmunds—	
	Southern junction with A 45 — Junction with B 1060.	A 1022
	Junction with A 1022 — Junction with St. Andrews Street South.	B 1060
	St. Andrews Street South (Junction with B 1060) — Junction with A 45.	Unclassified
	Bury St. Edmunds (Junction with St. Andrews Street South) — North-east of Newmarket (Junction with A 11).	A 45
	South-west of Newmarket (Junction with A 11) — Cambridge (South-eastern junction with A 10).	A 45
	Cambridge (North-western junction with A 10) — St. Neots — Eaton Socon (Southern junction with A 1).	A 45
	North-east of Roxton (Junction with A 1) — Bedford — Turvey — Northampton.	A 428
	Northampton — Weedon (Junction with A 5)	A 45

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
ROYSTON— HUNTINGDON— ALCONBURY.	Royston - Caxton - Godmanchester - Alconbury Hill (Junction with A 1).	A 14
OXFORD— NORTHAMPTON— STAMFORD— MARKET DEEPING.	Oxford - South of Kidlington South of Kidlington - Brackley - Towcester - Northampton - Kettering (Junction with Sheep Street A 6). Kettering (Junction with London Road A 6) - Duddington (Southern junction with A 47). Duddington (Northern junction with A 47) - Stamford (Junction with A 1). Stamford (Junction with A 1) - Market Deep- ing (Junction with A 15).	A 423 A 43 A 43 A 43 A 16
WZEEDON— ATHERSTONE— BROWNHILLS.	Weedon (Junction with A 45) - Kilsby - Smockington (South-eastern junction with A 46). Smockington (North-western junction with A 46) - West of Hinckley (South-eastern junction with A 47). West of Hinckley (North-western junction with A 47) - Atherstone - South of Lichfield (Southern junction with A 38). South of Lichfield (Northern junction with A 38) - Brownhills Common (Junction with A 452).	A 5 A 5 A 5 A 5
WORCESTER— WOLVERHAMPTON— SOUTH OF STAFFORD.	Worcester - Kidderminster - Wolverhampton - Penkridge (617 yards north of Bull Bridge).	A 449
NORTH WEST OF WOLVERHAMPTON— OAKENGATES.	Kingswood Common (Junction with A 41) - Shifnal - South of Oakengates (Junction with A 5).	A 464
KING'S LYNN— SLEAFORD— NEWARK.	King's Lynn - Long Sutton - Fleet Hargate Fleet Hargate - North of Holbeach (Junction with A 17). North of Holbeach (Junction with B 1358) - Sutterton - Sleaford. Sleaford - Holdingham Holdingham - Newark (Junction with Sleaford Road). Newark (Sleaford Road and Queen's Road)	A 17 B 1358 A 17 A 15 A 17 Unclassified
WIDMERPOOL— NOTTINGHAM— BAWTRY—GOOLE— HOWDEN	Widmerpool (New Inn) - West Bridgford... West Bridgford - West Bridgford (Junction with A 52). West Bridgford (Junction with A 60) - Nottingham. Nottingham—Leapool Leapool - Ollerton - Bawtry (Southern junction with A 1). Bawtry (Northern junction with A 1) - North of Hatfield Woodhouse (Junction with A 18). Tudworth Hall (Junction with A 18) - Thorne - Goole - Boothferry Bridge - Howden (Junction with A 63).	A 606 A 60 A 52 A 60 A 614 A 614 A 614

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
NORTH EAST OF BIRMINGHAM—NOTTINGHAM.	Sutton Coldfield – Tamworth (Southern junction with A 51). Tamworth (Southern junction with A 453) – Tamworth (Northern junction with A 453). Tamworth (Northern junction with A 51) – Ashby de la Zouch (Western junction with A 50). Ashby de la Zouch (Western junction with A 453) – Ashby de la Zouch (Eastern junction with A 453). Ashby de la Zouch (Eastern junction with A 50) – Long Eaton – Nottingham.	A 453 A 51 A 453 A 50 A 453
NOTTINGHAM—DERBY—STOKE-ON-TRENT.	Nottingham – West of Spondon (Junction with A 5111). West of Spondon (Junction with A 52) – Derby. Derby – Hatton... .. Hatton – Uttoxeter – Stoke-on-Trent ...	A 52 A 5111 A 516 A 50
DERBY—MACCLESFIELD—SOUTH OF STOCKPORT.	Derby – Ashbourne – East of Calton ... East of Calton – Leek – Macclesfield – Hazel Grove.	A 52 A 523
STOKE-ON-TRENT—MIDDLEWICH—DELAMERE.	Stoke-on-Trent – Kidsgrove – Lawton Gate (Junction with A 5011). Rode Heath (Junction with A 50) – Middlewich. Middlewich – Winsford – Delamere (Junction with A 556).	A 50 A 533 A 54
SHREWSBURY—WHITCHURCH—WARRINGTON.	Shrewsbury (Junction with A 5) – Shrewsbury (Castle Gates). Shrewsbury (Castle Gates) – Battlefield ... Battlefield – Whitchurch Heath (Junction with A 41). Whitchurch (Northern junction with A 41) – Tarporley – Warrington.	A 49 A 53 B 5064 A 49
SHOTWICK—FRODSHAM—WARRINGTON.	Shotwick – South-west of Helsby South-west of Helsby – Frodsham – Walton Inferior. Walton Inferior – Warrington... ..	A 5117 A 56 A 5060
LIVERPOOL—WARRINGTON—STOCKPORT—SHEFFIELD—LINCOLN—SKEGNESS.	Liverpool – Prescott – Warrington ... North of Grappenhall (Junction with A 50) – Lymm – Bowdon (New Bridge, junction with A 556). Altrincham (Junction with A 56) – Cheadle (Western junction with A 34). Cheadle (Western junction with A 560) – Cheadle (Eastern junction with A 560). Cheadle (Eastern junction with A 34) – Stockport – West of Mottram. West of Mottram – Hollingworth Hollingworth – North-west of Langsett (Flouch Inn).	A 57 A 56 A 560 A 34 A 560 A 57 A 628

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
LIVERPOOL- WARRINGTON- STOCKPORT- SHEFFIELD- LINCOLN- SKEGNESS —cont.	North-west of Langsett (Flouch Inn) - Sheffield. Sheffield - Worksop - Markham Moor (Northern junction with A 1). Markham Moor (Southern junction with A 1) - Dunham - Lincoln. Lincoln - Wragby - Horncastle (Northern junction with A 153). Horncastle (Northern junction with A 158) - Horncastle (Southern junction with A 158). Horncastle (Southern junction with A 153) - West of Hagworthingham. West of Hagworthingham - Partney (Junction with A 16). Partney (Junction with A 16) - Burgh-le-Marsh - Skegness (Junction with A 154).	A 616 A 57 A 57 A 158 A 153 A 158 B 1432 A 158
MANCHESTER- BURNLEY.	Manchester - Prestwich - Bury - Rawtenstall - Burnley.	A 56
MANCHESTER- HYDE-MOTTRAM.	Manchester - Denton - Hyde - West of Mottram (Junction with A 560).	A 57
NORTH OF ST. HELENS- SOUTHPORT.	North of St. Helens (Junction with A 580) - Ormskirk - Southport.	A 570
BOOTLE- SOUTHPORT- SOUTH OF PRESTON.	Bootle - Southport - Tarleton	A 565
BOOTLE- NORTH OF AINTREE.	Seaforth Sands Station (Junction with A 565) - Litherland. Litherland - East of Netherton (Junction with A 59).	A 5036 A 567
NORTH-WEST OF DONCASTER- WAKEFIELD- BRADFORD- SKIPTON- KENDAL.	Redhouse (Adwick le Street) - Ackworth - Wakefield. Wakefield - Morley - Bradford - Keighley (Junction with A 6035). Keighley (Junction with A 650) - Keighley (Junction with A 629). Keighley (Junction with A 6035) - Skipton (Junction with A 59). Skipton (Junction with A 629) - Skipton (Northern junction with A 65). Skipton - Settle - Kirkby Lonsdale - Kendal	A 638 A 650 A 6035 A 629 A 59 A 65
LEEDS-HALIFAX- BURNLEY- BLACKBURN- EAST OF PRESTON	Leeds - Halifax Halifax - Hebden Bridge - Todmorden - Burnley Burnley - Accrington - Blackburn ... Blackburn— County boundary (North of Leeds - Liverpool Canal) - County boundary (South of L.M.S. Railway, Great Harwood Loop). Blackburn - South of Mellor Brook (Junction with A 6063).	A 58 A 646 A 679 A 6119 A 677

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
PRESTON- BLACKPOOL.	Preston - Kirkham - Blackpool	A 583
EAST OF SNAITH- YORK-THIRSK- STOCKTON-ON- TEES- SUNDERLAND.	Turn Bridge - Snaith Snaith - Selby (Junction with A 19) ... Barlby (Southern junction with A 63) - York - Thirsk - Yarm - Stockton-on-Tees (Junction with A 67). Stockton-on-Tees (Junction with A 176) - Wolviston - Easington - New Seaham - Sunderland.	A 645 A 1041 A 19 A 19
LEEDS-YORK- SCARBOROUGH.	Leeds - Tadcaster - York - Malton - Scar- borough.	A 64
YORK-HULL.	York - Market Weighton - Beverley - Hull	A 1079
LEEDS-WETHERBY	Leeds - Wetherby	A 58
BOROUGHBRIDGE- THIRSK	Boroughbridge - Topcliffe Topcliffe - Thirsk Thirsk (Southern junction with A 168) - Thirsk (Junction with A 19).	A 167 A 168 A 61
LEVENS BRIDGE- BROUGHTON-IN- FURNESS- WORKINGTON- ASPATRIA- CARLISLE.	Levens Bridge - Newby Bridge - Greenodd Greenodd - Lowick Green Lowick Green - Gawthwaite Gawthwaite - Grizebeck Grizebeck - Broughton-in-Furness - Hall- thwaites. Hallthwaites - Whicham Whicham - Egremont - Whitehaven - Lilly Hall. Lilly Hall - Workington - Maryport - Aspatia - Wigton - Thursby. Thursby - Carlisle	A 590 A 5084 B 5280 B 5281 A 595 B 5283 A 595 A 596 A 595
GREENODD- BARROW-IN- FURNESS.	Greenodd - Ulverston - Dalton-in-Furness - Barrow-in-Furness.	A 590
CARDIFF-BRECON- BUILTH WELLS- LLANGURIG.	Cardiff - Pontypridd - Merthyr Tydfil - Brecon Brecon (Junction with A 470) - Brecon (Junction with A 438). Brecon - Pont-y-Bat Cross Roads... .. Pont-y-Bat Cross Roads - Llyswen ... Llyswen - Builth Wells (Southern junction with A 483). Builth Wells (Northern junction with A 483) - Newbridge-on-Wye - Rhayader. Rhayader - Llangurig (Northern junction with A 492).	A 470 A 40 A 438 A 4073 A 479 A 479 A 44
NEATH- ABERGAVENNY.	Neath - Glyn-Neath - Hirwaun - Merthyr Tydfil - Tredegar - Brynmawr - Aber- gavenny (Junction with A 40).	A 465

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
RAGLAN— ABERGAVENNY— BRECON— LLANDOVERY.	Raglan - South of Abergavenny (Junction with A 4042). Abergavenny (Eastern junction with A 465) - Brecon (Junction with A 438). Brecon (Junction with A 470) - Senny Bridge - Llandovery (Junction with A 483).	A 40 A 40 A 40
NEWPORT— MONMOUTH— ROSS-ON-WYE— WORCESTER.	Newport - Caerleon (High Street) - Usk - Raglan. Raglan - Monmouth Monmouth— Junction with A 40 - Junction with A 466 Junction with A 4136 - Junction with A 40 Monmouth (Junction with A 466) - Wilton (Junction with A 49). Ross-on-Wye (Junction with A 40) - Ledbury - Great Malvern - Worcester.	A 449 A 40 A 4136 A 466 A 40 A 449
LLANDILO— CARMARTHEN.	Llandilo (Northern junction with A 483) - Carmarthen (Junction with A 48).	A 40
HAVERFORDWEST— MILFORD HAVEN.	Haverfordwest - Milford Haven	A 4076
FISHGUARD— ABERYSTWYTH— DOLGELLEY— CAERNARVON— BANGOR (MENAI SUSPENSION BRIDGE).	Fishguard - Cardigan - Aberayron - Aberystwyth - Machynlleth - Dolgelley - Maentwrog - Penrhyndeudraeth. Penrhyndeudraeth - Minffordd The public road from Minffordd via Portmadoc to Tremadoc from its junction with A 497 at Minffordd to its junction with A 498 at Tremadoc. Tremadoc - West of Tremadoc (Junction with A 4085). West of Tremadoc (Junction with A 498) - Llanwnda. Llanwnda - Caernarvon - North-east of Port Dinorwic. North-east of Port Dinorwic - Menai Suspension Bridge (Junction with A 5).	A 487 A 497 A 498 A 4085 A 499 A 4087
NEWTOWN— ABERYSTWYTH.	Newtown - Llanidloes - Llangurig (Northern junction with A 44). Llangurig (Northern junction with A 492) - Pont-erwyd - Aberystwyth.	A 492 A 44
SHREWSBURY— DOLGELLEY.	West of Shrewsbury (Shelton) - Middleton - Buttington (Junction with A 483). Welshpool (Junction with A 483) - Llanfair Caereinion - Mallwyd - Cross Foxes.	A 458 A 458
DOLGELLEY—BALA— RUTHIN— QUEENSFERRY— SOUTH OF BIRKENHEAD.	Dolgelley - Bala - Druid (Junction with A 5) Tyn-y-cefn (Junction with A 5) - Ruthin - Mold (Junction with A 549). Mold— Junction with A 494 - Junction with B 5123 Junction with A 549 - Junction with A 494 Mold (Junction with B 5123) - Ewloe (Western junction with A 55).	A 494 A 494 A 549 B 5123 A 494

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
DOLGELLEY-BALA-RUTHIN-QUEENSFERRY-SOUTH OF BIRKENHEAD—cont.	Ewloe (Eastern junction with A 55) – Queensferry. Queensferry (Junction with A 494) – Queensferry (Junction with A 548). Queensferry (Southern junction with A 550) – North of Queensferry (Northern junction with A 550). North of Queensferry (Northern junction with A 548) – North of Childer Thornton.	A 494 A 550 A 548 A 550
MAENTWROG-BETTWS-Y-COED-EAST OF CONWAY.	Felin Ty'n-y-nant (Junction with A 487) – Ffestiniog Railway Station. Ffestiniog Railway Station – Ffestiniog (Western junction with B 4408). Ffestiniog (Western junction with B 4391) – Manod Station. Manod Station – Blaenau Ffestiniog – Dolwyddelan – Waterloo Bridge, Bettws-y-Coed (Southern junction with A 5). Waterloo Bridge, Bettws-y-Coed (Northern junction with A 5) – Llanwrst – North of Glan Conway (Eastern junction with A 55).	B 4408 B 4391 B 4408 A 496 A 496
NEWCASTLE-UPON-TYNE-EDINBURGH.	Newcastle-upon-Tyne – Ponteland – Otterburn – Elishaw. Elishaw – Carter Bar – Jedburgh – Lauder – Dalkeith – Edinburgh.	A 696 A 68
DUMFRIES-BEATTOCK.	Dumfries—Craighielands (Junction with A 74)	A 701
DUMFRIES-KILMARNOCK.	Dumfries – Thornhill – Cumnock (Southern junction with A 70). Cumnock (Southern junction with A 76) – Cumnock (Northern junction with A 76). Cumnock (Northern junction with A 70) – Hurlford. Hurlford – Kilmarnock	A 76 A 70 A 76 A 71
WEST OF BIGGAR-EDINBURGH.	West of Symington Station (Junction with A 73) – North-east of Biggar (Junction with A 702). North-east of Biggar (Junction with A 72) – West Linton – Edinburgh.	A 72 A 702
ABINGTON-LANARK-AIRDRIE-CUMBERNAULD.	Abington (Junction with A 74) – Hyndfordbridge-end (Southern junction with A 70). Hyndfordbridge-end (Southern junction with A 73) – Hyndfordbridge-end (Northern junction with A 73). Hyndfordbridge-end (Northern junction with A 70) – Lanark – Carluke – Newmains (Southern junction with A 71). Newmains (Southern junction with A 73) – Newmains (Northern junction with A 73). Newmains (Northern junction with A 71) – Airdrie – Cumbernauld.	A 73 A 70 A 73 A 71 A 73

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
GLASGOW— GREENOCK— MONKTON.	Glasgow — Port Glasgow — Greenock — Gourrock.	A 8
	Gourrock — Largs — Ardrossan — Irvine — Monkton.	A 78
DENNYLOANHEAD— KINCARDINE— KIRKCALDY— ST. ANDREWS.	Dennyloanhead (Southern junction with A 80) — West of Bonnybridge (Junction with B 817).	A 803
	West of Bonnybridge (Junction with A 803) — Dunipace Bridge (Western junction with A 883).	B 817
	Dunipace Bridge (Western junction with B 817) — Dunipace Bridge (Eastern junction with B 817).	A 883
	Dunipace Bridge (Eastern junction with A 883) — Larbert (Junction with A 9).	B 817
	North of Larbert (Junction with A 9) — Bellsdyke (Southern junction with A 905).	A 977
	Bellsdyke (Southern junction with A 977) — Bellsdyke (Northern junction with A 977).	A 905
	Bellsdyke (Northern junction with A 905) — Kincardine-on-Forth Bridge — Kincardine.	A 977
	Kincardine — Torryburn — Broomhall, Eastlodge	A 985
	Broomhall, Eastlodge — Inverkeithing (Junction with A 90).	A 906
	Inverkeithing (Junction with A 906) — Inverkeithing (Junction with A 92).	A 90
	Inverkeithing (Junction with A 90) — Aberdour — Burntisland — Kirkcaldy.	A 92
	Kirkcaldy — Windygates — Upper Largo ...	A 915
	Upper Largo — Balchrystie ...	A 917
	Balchrystie — White Stone Corner (Junction with unclassified road to Newton of Balcormo).	B 942
	White Stone Corner (Junction with B 942) — Newton of Balcormo — Ovenstone — Spalefield — Ribbonfield — Chance Inn (Junction with A 918).	Unclassified
	Chance Inn (Junction with unclassified road from Newton of Balcormo) — St. Andrews.	A 918
	St. Andrews— Abbey Street — South Street (part) — Deans Court — North Street (Northern junction with A 91).	A 918
INVERKEITHING— PERTH.	Inverkeithing (Junction with A 906) — Cowdenbeath — Kinross — Milnathort — Perth.	A 90
STIRLING—CUPAR— ST. ANDREWS.	Stirling — East of Stirling (Junction with B 907).	A 907
	East of Stirling (Junction with A 907) — East of Airthrey Castle.	B 907
	East of Airthrey Castle — Tillicoultry — Dollar — Milnathort (Junction with A 90).	A 91
	Arlary (Junction with A 90) — Auchtermuchty — Cupar — St. Andrews (Northern junction with A 918).	A 91

1ST SCH.
—cont.

Name of trunk road.	General description of route.	Ministry of War Transport classification number.
STIRLING— CALLANDER— CRIANLARICH.	Stirling—Doune—Callander—Lochearnhead ... Lochearnhead—Criannlarich	A 84 A 85
TARBET— INVERARY— LOCHGILPHEAD— OBAN.	Tarbet—Arrochar—Inverary—Lochgilphead (Junction with A 817). Lochgilphead (Junction with A 83) — Loch- gilphead (Junction with A 816). Lochgilphead (Junction with A 817) — Kil- martin — Kilmelfort — Oban.	A 83 A 817 A 816
CONNEL—GLENCOE	North Connel (Junction with road to Connel Bridge North of Lochnell Arms Hotel) — Portnacroish — Kentallen — Ballachulish — Carnach.	A 828
FORT WILLIAM— MALLAIG.	Lochy Bridge — Glenfinnan — Arisaig — Mallaig.	A 830
INVERGARRY— KYLE OF LOCHALSH.	Invergarry — Tomdoun — Cluanie — Dornie — Kyle of Lochalsh — Kyle of Lochalsh slipway.	A 87
ABERDEEN— HUNTLY— FOCHABERS.	Aberdeen — Inverurie — Huntly — Keith — Fochabers (Junction with A 98).	A 96
DINGWALL— ULLAPOOL.	Dingwall — Contin Contin — Gorstan Gorstan — Braemore — Ullapool (Junction with A 893).	A 834 A 832 A 835

PART II.

ROADS IN COUNTY BOROUGH AND LARGE BURGH.

County Borough or large burgh and name of trunk road.	General description of route.	Ministry of War Transport classification number.
COUNTY BOROUGH OF BLACKBURN.		
LEEDS—HALIFAX— BURNLEY— BLACKBURN— EAST OF PRESTON.	Borough boundary (east) — Whitebirk Road (Junction with A 6119). Accrington Road (Junction with A 679) — Borough boundary (North of Leeds — Liverpool Canal). Borough boundary (South of L.M.S. Rail- way, Great Harwood Loop) — Borough boundary (West of Beardwood).	A 679 A 6119 A 6119

1ST SCH.
—cont.

County Borough or large burgh and name of trunk road.	General description of route.	Ministry of War Transport classification number.
<u>COUNTY BOROUGH OF BOLTON.</u> LONDON-CARLISLE-GLASGOW-INVERNESS.	Borough boundary (North-west of Greenheys) - Borough boundary at Hulton Lane Ends.	A 6
<u>COUNTY BOROUGH OF BOOTLE.</u> BOOTLE-NORTH OF AINTREE.	Dunnings Bridge Road— Borough boundary (West of Boundary Road) - Borough boundary (East of Boundary Road).	A 567
<u>COUNTY BOROUGH OF BRADFORD.</u> LEEDS-HALIFAX-BURNLEY-BLACKBURN-EAST OF PRESTON.	City boundary (South of Wyke) - City boundary (West of Lower Wyke).	A 58
<u>COUNTY BOROUGH OF BURNLEY.</u> LEEDS-HALIFAX-BURNLEY-BLACKBURN-EAST OF PRESTON.	Borough boundary (South of Healey Heights) - Accrington Road (Junction with A 679). Rosendale Road (Junction with A 646) - Borough boundary (East of Hapton).	A 646 A 679
<u>CITY OF COVENTRY.</u> LONDON-HOLYHEAD. BATH-CHELTENHAM-EVESHAM-COVENTRY-LEICESTER-LINCOLN.	City boundary at Willenhall - City boundary (West of Allesley). City boundary at Gibbet Hill - Burnt Post (Junction with A 45).	A 45 A 46
<u>COUNTY BOROUGH OF DERBY.</u> LONDON-CARLISLE-GLASGOW-INVERNESS. EXETER-LEEDS	Borough boundary (South-east of Alvaston) - Darley Abbey (Junction with A 6). Darley Abbey (Junction with A 5111) - Borough boundary at Darley Abbey. Borough boundary at Littleover - Warwick Avenue (Junction with A 5111).	A 5111 A 6 A 38

1ST SCH.
—cont.

County Borough or large burgh and name of trunk road.	General description of route.	Ministry of War Transport classification number.
<u>COUNTY BOROUGH OF DERBY—cont.</u>		
NOTTINGHAM— DERBY— STOKE-ON-TRENT.	Borough boundary (South of Spondon Park) —	A 5111
	Borough boundary (North-east of Alvaston). Manor Road (Junction with A 5111) — Borough boundary (North-east of Mickle- over).	A 516
DERBY— MACCLESFIELD— SOUTH OF STOCKPORT.	Markeaton Park (Junction with A 5111) — Borough boundary (at Mackworth).	A 52
<u>COUNTY BOROUGH OF DUDLEY.</u>		
EAST OF BIRMINGHAM— BIRKENHEAD.	All those sections within the borough ...	A 4123
<u>COUNTY BOROUGH OF EAST HAM.</u>		
LONDON—TILBURY.	Borough boundary (west) — Borough bound- ary (east).	A 13
<u>CITY OF GLOUCESTER.</u>		
LONDON— FISHGUARD.	City boundary (east) — City boundary (west) (excluding spur to A 417).	A 40
HUNGERFORD— GLOUCESTER— ROSS-HEREFORD.	City boundary (east) — Cole Bridge (Junction with A 40) (excluding Barnwood Road spur to A 40).	A 417
<u>COUNTY BOROUGH OF IPSWICH.</u>		
LONDON— GREAT YARMOUTH.	Borough boundary (south-west) — Borough boundary (east).	A 12
IPSWICH— NEWMARKET— CAMBRIDGE— ST. NEOTS— BEDFORD— NORTHAMPTON— WEEDON.	Chevallier Street (Junction with A 12) — County borough boundary at Whitton.	A 45
<u>CITY OF LEEDS.</u>		
LIVERPOOL— PRESTON—LEEDS.	City boundary (north) — Ring Road at Weetwood Grange (Junction with A 6120).	A 660
LIVERPOOL— LEEDS—HULL.	Whitkirk Lane End (Junction with A 6120) — City boundary (East of Swillington Mill).	A 63

1ST SCH.
—cont.

County Borough or large burgh and name of trunk road.	General description of route.	Ministry of War Transport classification number.
<u>CITY OF LEEDS</u>		
—cont.		
LEEDS RING ROAD.	Weetwood Grange (Junction with A 660) – Mill Green (Junction with A 64). South of Seacroft (Junction with A 64) – Whitkirk Lane End (Junction with A 63).	A 6120 A 6120
LEEDS-YORK-SCARBOROUGH.	South of Seacroft (Junction with A 6120) – City boundary at Mill Green.	A 64
LEEDS-WETHERBY	Ring Road (Junction with A 6120) – City boundary (South of Red Hall).	A 58
<u>CITY OF LIVERPOOL.</u>		
LIVERPOOL-LEEDS-HULL.	Queens Drive (Junction with A 5058) – Walton Hall Avenue – City boundary at Croxteth Brook.	A 580
<u>CITY OF NORWICH.</u>		
LONDON-NORWICH	City boundary at Cringleford Bridge – Mile End Road (Junction with A 1074).	A 11
BIRMINGHAM-GREAT YARMOUTH.	City boundary (West) – Woodlands (Junction with A 1074). Woodlands (Junction with A 47) – Trowse Millgate (Junction with A 146). Trowse Millgate (Junction with A 1074) – Carrow Bridge (Junction with A 1074). Carrow Bridge (Junction with A 146) – East of Cotman Road (Junction with A 47). East of Cotman Road (Junction with A 1074) – City boundary (east).	A 47 A 1074 A 146 A 1074 A 47
<u>CITY OF NOTTINGHAM.</u>		
NORTH-EAST OF BIRMINGHAM-NOTTINGHAM.	City boundary (North-east of Beeston) – Clifton Boulevard (Junction with A 614).	A 453
NOTTINGHAM-DERBY-STOKE-ON-TRENT.	Clifton Boulevard (Junction with A 614) – City boundary at Tottlebrook Bridge.	A 52
NOTTINGHAM RING ROAD.	Beeston Road (Junction with A 453) – Radford Bridge (Junction with A 609). Radford Bridge (Western junction with A 614) – Radford Bridge (Eastern junction with A 614). Radford Bridge (Junction with A 609) – City boundary (Junction with A 60).	A 614 A 609 A 614
<u>CITY OF OXFORD.</u>		
LONDON-FISHGUARD.	City boundary (East of Headington) – City boundary (North-west of Headington). City boundary (West of River Cherwell) – City boundary (North of Wolvercot).	A 40 A 40

1ST SCH.
—cont.

County Borough or large burgh and name of trunk road.	General description of route.	Ministry of War Transport classification number.
<u>CITY OF OXFORD</u> —cont.		
WINCHESTER—PRESTON.	Upper Wolvercot (Junction with A 40) — City boundary (north).	A 34
OXFORD—NORTHAMPTON—STAMFORD—MARKET DEEPING.	South of Wolvercot Cemetery (Junction with A 40) — City boundary (north).	A 423
<u>COUNTY BOROUGH OF ST. HELENS.</u>		
LIVERPOOL—LEEDS—HULL.	Borough boundary (South-east of Moss Bank Station) — Borough boundary (East of Carr Mill Viaduct).	A 580
<u>CITY OF STOKE-ON-TRENT.</u>		
WINCHESTER—PRESTON.	City boundary (at Strongford Bridge) — City boundary (at Newcastle-under-Lyme).	A 34
<u>COUNTY BOROUGH OF WEST HAM.</u>		
LONDON—TILBURY.	Prince Regents Lane (Junction with A 112) — Borough Boundary (east).	A 13
<u>BURGH OF DUNFERMLINE.</u>		
DENNYLOANHEAD—KINCARDINE—KIRKCALDY—ST. ANDREWS.	City boundary (west) at Peattiesmuir — City boundary (east) at Rosyth.	A 906
<u>CITY OF DUNDEE.</u>		
PERTH—ABERDEEN—INVERNESS.	City boundary (west) — Strips of Craigie (Junction with A 92). Strips of Craigie (Junction with A 972) — City boundary (east).	A 972 A 92
<u>BURGH OF CLYDEBANK.</u>		
LONDON—CARLISLE—GLASGOW—INVERNESS.	Burgh boundary (east) — Burgh boundary (west).	A 82
<u>BURGH OF DUMBARTON.</u>		
LONDON—CARLISLE—GLASGOW—INVERNESS.	Burgh boundary (south-east) — Burgh boundary (north.)	A 82

SECOND SCHEDULE.

Section 2.

PROCEDURE FOR MAKING ORDERS.

1. Before making the order the Minister shall publish in at least one local newspaper circulating in the area in which any road to which the order relates is situated and in the London or Edinburgh Gazette, as the case may be, a notice—

- (a) stating the general effect of the order ;
- (b) specifying a place in the said area where a copy of the draft order and of any relevant map or plan may be inspected by any person free of charge at all reasonable hours during a period of three months from the date of the publication of the notice ; and
- (c) stating that, within the said period, any person may by notice to the Minister object to the making of the order.

2. Not later than the date on which the said notice is published as aforesaid, the Minister shall serve a copy thereof (together with a copy of the draft order and of any relevant map or plan) on the council of every county, county borough or metropolitan borough in which any road to which the order relates is situated, and, in the case of a road situated in any other borough or in an urban district, on the council of that borough or urban district.

3. Where the order provides for the stopping up of a junction between a trunk road and any other road, the Minister shall, not later than the date on which the notice is published as aforesaid, cause a copy thereof to be displayed in a prominent position at the junction which is proposed to be so stopped up.

4. If before the expiration of the said period of three months an objection is received by the Minister from any council on whom a notice is required to be served under this Schedule, or from any other person appearing to him to be affected by the order, and the objection is not withdrawn, the Minister shall cause a local inquiry to be held provided that except where the objection is made by any such council as aforesaid, the Minister may dispense with such an inquiry if he is satisfied that in the special circumstances of the case the holding of such an inquiry is unnecessary.

5. After considering any objections to the order which are not withdrawn, and, where a local inquiry is held, the report of the person who held the inquiry, the Minister may make the order either without modification or subject to such modifications as he thinks fit.

THIRD SCHEDULE.

Section 12.

MINOR AND CONSEQUENTIAL AMENDMENTS OF THE PRINCIPAL ACT.

Provision amended.

Amendment.

Section 3 ... In subsection (5), after the word " county " in the second place where that word occurs, there shall be inserted the words " or county borough ".

3RD SCH.
—cont.

Provision amended.

Amendment.

Section 4 ... In subsection (1), after the words "county council" there shall be inserted the words "or the county borough council, as the case may be".

In subsection (6), after the word "Minister," in the first place where that word occurs, there shall be inserted the words "to the exclusion of the authority", and for the words "by the authority and not by the Minister" there shall be substituted the words "by the Minister as well as by the authority".

Section 5 ... In subsection (1), after the word "county" there shall be inserted the words "or county borough"; after the words "trunk road" there shall be inserted the words "or any land acquired by him under this Act which does not form part of a trunk road"; and for the words from "Provided that" to the end of the subsection there shall be substituted the words "Provided that such functions shall not be delegated to any such council with respect to any road or land outside their area except with the consent of the council of the county, county borough or metropolitan borough in which the road or land is situated".

In subsection (2), after the word "road," wherever that word occurs, there shall be inserted the words "or land".

Section 6 ... In subsection (1), after the word "county" there shall be inserted the words "or county borough"; for the words "such a road" there shall be substituted the words "any such road or any land acquired by the Minister under this Act which does not form part of such a road"; the words "being a road with respect to which functions may be delegated to that council under the last foregoing section" shall be omitted; and for the words "that section" there shall be substituted the words "the last foregoing section".

In subsections (3) and (8), after the word "county" in both places where that word occurs, there shall be inserted the words "or county borough".

Section 9 ... In subsection (3), after the word "borough," in the first place where that word occurs, there shall be inserted the words "including a county borough".

Provision amended.

Amendment.

3RD SCH.

—cont.

Section 12... ... In subsection (2) for paragraph (b) the following paragraph shall be substituted :—

“(b) For any reference to a county road or a county bridge there shall be substituted a reference to a road or bridge for the maintenance and management of which a county council or the town council of a large burgh, as defined in the Local Government (Scotland) Act, 1929, is responsible ;”

and in paragraph (d) there shall be added at the end the words “ or, in any case concerning a local authority whose financial year ends on a day other than the fifteenth day of May, as references to that other day and to the next day thereafter ”.

In subsection (10) after the word “ county ” where that word first occurs there shall be inserted the words “ or of any large burgh as defined in the Local Government (Scotland) Act, 1929 ” and for all the words after “ dealing with ” there shall be substituted the words “ (a) a trunk road within the county or large burgh ; or (b) a trunk road within any other county or large burgh if the council thereof consent. For the purposes of this subsection a trunk road within a small burgh as defined in the Local Government (Scotland) Act, 1929, shall be deemed to be within the county in which that burgh is situate, and any reference to a trunk road shall include a reference to land acquired by the Minister under this Act which does not form part of a trunk road.”

Subsection (14) shall be omitted.

In subsection (15), for the words “ subsection (2), ” in the second place where those words occur, there shall be substituted the words “ subsection (3) ”

Section 13... ... In subsection (1), in the definition of “ borough,” after the words “ county borough ” there shall be inserted the words “ or a metropolitan borough ” ; in the definition of “ county ”, after the words “ administrative county ” there shall be inserted the words “ within the meaning of the Local Government Act, 1933,” ; in the definition of “ local authority,” after the word “ county ” there shall be inserted the words “ or county borough ” ; and in the definition of “ road,” for the words “ bridge over which ” there shall be substituted the words “ bridge or tunnel over or through which ”.

3RD SCH.
—cont.

Provision amended.

Amendment.

Fourth Schedule ... In paragraph 6, in sub-paragraph (a) the words "the words 'or of preventing the erection of buildings detrimental to the view from the road' and " and in sub-paragraph (c) the words "subsection (2) and," shall be omitted.

Section 15.

FOURTH SCHEDULE.

MODIFICATIONS OF PRINCIPAL ACT AS RESPECTS LONDON.

Provision modified.

Modification.

Section 3 ... In subsection (1), for the words from "highway authorities" to "local authority" there shall be substituted the words "any local authority as highway authority".

In subsection (2), the words "shall not be exercisable by a county council in any borough or urban district but save as aforesaid" and the words "shall not be exercisable by a county council in any borough or urban district and" shall be omitted; for the words "Parts I and II" there shall be substituted the words "Part I"; and for the words "those Parts" there shall be substituted the words "that Part".

In subsection (4), for the words "county road", in both places where those words occur, there shall be substituted the words "road repairable by a local authority".

In subsection (5), for the words "county roads or roads chargeable to a county" there shall be substituted the words "roads repairable by a local authority".

Section 4 ... For subsection (1) there shall be substituted the following subsection:—

"(1) Notwithstanding anything in section twenty of the Restriction of Ribbon Development Act, 1935 (hereinafter in this section referred to as 'the Act of 1935') the provisions of that Act shall apply in relation to a road in the County of London so long as that road is a trunk road, and the functions of the highway authority under sections one and two of that Act shall be exercisable, in relation to any such road, by the London County Council, and in this section the expression 'the authority' means the authority by whom the said functions are exercisable."

Provision modified.

Modification.

4TH SCH.

Section 5 ... For subsection (1) there shall be substituted the following subsection :—

—cont.

“(1) The Minister may by agreement with any local authority delegate to that authority all or any of his functions (including functions under the enactments mentioned in Part I of the Third Schedule to this Act) with respect to the maintenance, repair and improvement of, and other dealing with, any trunk road or any land acquired under this Act which does not form part of a trunk road :

Provided that such functions shall not be delegated to the council of a metropolitan borough with respect to any road or land in any other metropolitan borough except with the consent of the council of the metropolitan borough in which the road or land is situated and shall not be delegated to any local authority with respect to a road or land outside the County of London except with the consent of the council of the county or county borough in which the road or land is situated.”

Section 6 ... In subsection (1), for the words from “ the council ” to “ urban district ” there shall be substituted the words “ any local authority ”.

In paragraph (a) of the proviso to subsection (3), for the words from “ the council ” to the end of the paragraph there shall be substituted the words “ the London County Council and the council of the metropolitan borough in which the road across the trunk road is situated ” ; and in paragraph (b) of the said proviso, for the words from “ council in whom ” to the end of the paragraph there shall be substituted the words “ London County Council or the council of the metropolitan borough in which the connection or approach is situated, or partly in one of those councils and partly in the other, according as the Minister, after consultation with those councils, may direct, and the council in whom the connection or approach or any part thereof is so vested shall be responsible for the maintenance and repair thereof.”

For subsection (6) there shall be substituted the following subsection :—

“(6) Subsection (2) of section one hundred and thirteen of the Public Health (London) Act, 1936 (which relates to the vesting of the subsoil of streets for the purpose of the exercise by sanitary authorities of their

4TH SCH.
—cont.

Provision modified.
Section 6—cont.

Modification.

powers under that subsection subject to an exception respecting bridges of the county council) shall have effect, in relation to trunk roads, as if references therein to the county council included references to the Minister".

Subsection (7) shall be omitted.

In subsection (8), for the words from the beginning to "may", in the first place where that word occurs, there shall be substituted the words "The London County Council and the council of any metropolitan borough may", and the words from "and the council of any borough" to the end of the subsection shall be omitted.

Section 9 ... For subsections (2) and (3) there shall be substituted the following subsections:—

"(2) Subsection (3) of section sixty of the London Government Act, 1939 (which provides that no liability exceeding fifty pounds shall be incurred by a local authority except on a resolution of the authority passed on an estimate submitted by the finance committee) shall not apply to any liability incurred by a local authority as agents for the Minister under this Act.

(3) Subsections (2) and (3) of section one hundred and nineteen of the said Act (which regulates payments out of the county fund) and subsections (2) and (3) of section one hundred and twenty-two of that Act (which regulates payments out of the general rate fund of a metropolitan borough) shall not apply to any payments made for the purpose of meeting liabilities incurred by the London County Council or by a metropolitan borough council as agents for the Minister under this Act."

Section 10 ... In subsection (1), for the reference to subsections (2), (3), (4) and (5) of section two hundred and ninety of the Local Government Act, 1933, there shall be substituted a reference to subsections (2), (3), (4) and (5) of section one hundred and eighty-nine of the London Government Act, 1939.

Section 13 ... In the definition of "county", after the words "administrative county" there shall be added the words "including the County of London"; after that definition there shall be inserted the following definition:—

"'County of London' means the Administrative County of London as defined in

Provision modified.

Modification.

4TH SCH.
—cont.

Section 13—cont.

subsection (1) of section one of the London Government Act, 1939, exclusive of the City of London ” ;

and for the definition of “ local authority ” there shall be substituted the following definition :—

“ ‘ Local authority ’ means the London County Council or a metropolitan borough council ”.

Schedule II

... The following enactments shall be included in the Schedule, subject to the modifications respectively specified in relation thereto, that is to say :—

The Metropolis Management Amendment Act, 1862 (25 & 26 Vict. c. 102)

Section 72 ... The words “ with the previous consent in writing of the Metropolitan Board of Works ” shall be omitted.

Section 82 ... For the words from “ the surveyor ” to the end of the section there shall be substituted the words “ the Minister ”.

Schedule III

... In Part I, the references to the Public Health Act, 1875, the Local Government Act, 1894, the Public Health Acts Amendment Act, 1907, and the Public Health Act, 1925, shall be omitted, and the following enactments shall be included therein, subject to the modifications, if any, respectively specified in relation thereto, that is to say :—

The Metropolis Management Act, 1855
(18 & 19 Vict. c. 120)

Sections 102 and

121.

Section 122 ... The words “ the clerk or surveyor of ” shall be omitted.

Section 140 ... The word “ paving ” shall be omitted.

The Metropolis Management Amendment Act, 1862 (25 & 26 Vict. c. 102)

Section 86 ... The words “ paving and ”, the words “ paving or making up or ”, and the words “ and the repair and maintenance of such roadway or footpaths ” shall be omitted.

4TH SCH.
—cont.

Provision modified.
Schedule III—cont.

Modification.

The Metropolis Management Amendment Act 1890, (53 & 54 Vict. c. 66)
Section 6 ... The words from "it shall not be lawful to form" to "expressed in writing and", the words from "If the vestry or district board shall refuse their approval" to "person appealing", the words "or on appeal by the Council" and the words "or on appeal of the Council" shall be omitted.

The Public Health (London) Act, 1936
(26 Geo. 5. and 1 Edw. 8. c. 50)

Subsection (4) of section 86.

For Parts II and III there shall be substituted the following Parts :—

"PART II

FUNCTIONS OF LOCAL AUTHORITIES IN LONDON
EXERCISABLE IN RELATION TO TRUNK ROADS
BY THE MINISTER AS WELL AS BY OTHER
AUTHORITIES.

The Metropolis Management Act, 1855 (18 & 19 Vict. c. 120)—

Section 119

Section 120

The Barbed Wire Act, 1893 (56 & 57 Vict. c. 32)—

Section 3

PART III.

FUNCTIONS OF LOCAL AUTHORITIES IN LONDON
EXERCISABLE IN RELATION TO TRUNK ROADS
BY THE MINISTER AND BY OTHER AUTHORITIES
WITH THE CONSENT OF THE MINISTER.

The Metropolis Management Act, 1855 (18 & 19 Vict. c. 120)—

Section 108

The Public Health (London) Act, 1936 (26 Geo. 5 & 1 Edw. 8. c. 50.)

Section 25

Section 30

Section 55 "

Schedule IV ... For paragraph 6 there shall be substituted the following paragraphs :—

"6. In subsection (1) of section thirteen for the words from 'and the provisions' to 'under that Act' there shall be substituted the words 'and the provisions of sections one hundred and two, one hundred and three, one hundred and four and one hundred and five of the London Government Act, 1939,

Provision modified.
Schedule IV—*cont.*

Modification.

4TH SCH.
—*cont.*

and paragraph (a) of subsection (1) of section one hundred and fourteen of that Act, shall apply with respect to any such order in like manner as they apply to orders to be confirmed by the Minister of Health under that Act.'

6A. Sections thirteen to fifteen of the said Act shall, in their application to the acquisition of land by the Minister, have effect subject to the following modifications:—

(a) in section thirteen the expression 'improvement' shall have the same meaning as in this Act and in subsection (1) of the said section the words 'by them and confirmed' shall be omitted;

(b) in sections one hundred and two, one hundred and three and one hundred and five of the London Government Act, 1939, as applied by the said section thirteen as modified by the last foregoing paragraph, for the references to a local authority there shall be substituted references to the Minister, for the references to an order made by a local authority and confirmed by the Minister there shall be substituted references to an order made by the Minister, for the references to the making of an order there shall be substituted references to the preparing of a draft order and for the references to the submitting of an order to, or the confirming of an order by, the Minister, there shall be substituted references to the making of an order by him; and

(c) paragraphs (b) and (c) of subsection (3) of the said section thirteen and subsection (3) of section seven of the Bridges Act, 1929, as applied by subsection (2) of the said section fourteen shall not apply."

Schedule V ... In paragraph 1, the words "and improvement lines" and sub-paragraphs (a) and (c) of paragraph 3, shall be omitted.